

SYNTHETIC TEST RECORD — DEPOSITION OF MARCUS LEE

Rivera v. Northstar Logistics, Case No. SYN-25-CV-1042

Excerpt page 1 of 3

1 Q. Please state where you were at 8:14 a.m. on March 12, 2025.

2 A. I was on the northeast corner of Pine Street and Eighth Avenue.

3 Q. What did you observe?

4 A. I saw a white Northstar Logistics van enter the intersection eastbound.

5 Q. What color was the traffic signal for the van?

6 A. From where I stood, it looked green, but a delivery truck partly blocked my view.

7 Q. Could you see the signal continuously?

8 A. No. I lost sight of it for two or three seconds before impact.

9 Q. Did you hear anything?

10 A. I heard a horn and then the collision.

Excerpt page 2 of 3

1 Q. Did the Northstar van stop after the collision?

2 A. Yes. It stopped near the east curb, and the driver got out.

3 Q. Did the driver say anything?

4 A. He said, 'I was looking at the route screen.'

5 Q. Are you certain those were his exact words?

6 A. That is how I remember it, although the intersection was noisy.

7 Q. Did Ms. Rivera leave her vehicle?

8 A. She stepped out, held her right shoulder, and sat on the curb.

9 Q. When did emergency personnel arrive?

10 A. I would estimate about 8:22 a.m.

Excerpt page 3 of 3

1 Q. Did anyone ask you to change your account?

2 A. No.

3 Q. Have you reviewed the police report?

4 A. Yes, yesterday.

5 Q. Does that affect your independent memory?

6 A. It may help with the time, but my view of the signal was obstructed.

7 Q. So you cannot rule out that the signal changed before impact?

8 A. Correct. I cannot rule that out.

9 Q. Anything else material to your testimony?

10 A. No.